

From Financial Right to Exit Leverage: An Economic Analysis of Mahr in Iranian Family Law

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The recent bill to amend the rules on mahr has reopened the debate over the number of gold coins at stake and the imprisonment of mahr debtors. On 23 August 2026 (1 Shahrivar 1405), the Islamic Consultative Assembly (Majlis) approved a bill that sought to lower the threshold for the enforcement mechanism under Article 3 of the Law on the Manner of Enforcement of Financial Judgments from 110 gold coins to fourteen; the underlying mahr debt itself was not capped at fourteen coins. The bill also provided for electronic monitoring in place of imprisonment for certain judgment debtors. Its scope, however, was not limited to coins and detention: it also addressed the identification of assets, the adjustment of mahr installments during periods of price volatility, and certain rules on divorce and the wife's right of retention. The Guardian Council and the Supreme Supervisory Board of the Expediency Discernment Council ultimately objected to parts of the bill. Among other things, the Guardian Council held that a numerical cap of fourteen coins was not an adequate substitute for determining whether a debtor is insolvent or solvent. The text was returned to the Majlis for revision.¹

Yet the debate over “fourteen or 110 coins” does not by itself capture the problem. Mahr is not a financial claim that stands apart from the rest of family law. Its value depends on whether a woman can obtain a divorce, whether she has income and housing, whether she shares in the assets acquired during the marriage, and whether she can enforce a court judgment. When the law changes the means of collecting mahr, it may also change each spouse's bargaining power within the marriage and the cost of divorce.

This analysis is not a defense of imprisoning debtors who cannot pay or of disproportionate mahr amounts, and the prevailing form of mahr in Iranian family law is itself problematic. The amount written into the marriage contract sometimes bears no relation to the husband's ability to pay, and a rise in the price of gold coins can suddenly make the obligation onerous. Collection may take years, and a woman who regards this right as her financial safeguard is sometimes compelled to relinquish it (*bazl*) in order to obtain a divorce. Structural reform is therefore necessary, but its sequencing matters even more: if the means of collection are weakened and no other protection takes their place, the economic risk of divorce falls more heavily on women.

¹ Guardian Council, “[Details of the Guardian Council's Review of the So-Called Mahr Bill](#)” [in Persian], 22 September 2026 (31 Shahrivar 1405); [Family Protection Act of 2013 \(1391 SH\)](#), art. 22. The full text of the approved bill was published as “[Bill to Amend Certain Provisions of the Law on the Manner of Enforcement of Financial Judgments and the Civil Code](#)” [in Persian], *Ekhtebār*, 16 September 2026 (25 Shahrivar 1405).

Why did mahr acquire an economic function?

In Imami jurisprudence and Iranian law, the dower (*sadaq*) is recognized as the wife's own financial right. Verse 4 of Surat al-Nisa' speaks of giving it to women, and Article 1082 of the Iranian Civil Code provides that the wife owns the mahr from the moment the marriage contract is concluded. In this respect, mahr should not be equated with a "price of the woman" or with a payment made to her family.

Mahr has not, however, had a single rationale or function across all periods and societies. In Islamic jurisprudence, for instance, it has been discussed both as a gift (*nihla*) and financial right of the wife and in relation to *bud'* (conjugal access), *tamkin* (marital submission), and the right of retention. These views cannot be reduced to a single theory. Historical research, including Yossef Rapoport's study of Cairo, Damascus, and Jerusalem in the late medieval period, shows that prompt dower, deferred dower, and other marriage payments did not play the same role in different periods. Understanding the function of mahr therefore requires attention to women's property rights, their ability to work, the rules of divorce, and the capacity of courts to enforce obligations.²

In contemporary Iran, mahr is usually stipulated as payable on demand (*'ind al-mutalaba*), meaning that the wife may claim it at any time and need not wait until divorce. It is sometimes stipulated as payable upon the husband's ability (*'ind al-istita'a*), in which case payment depends on his financial capacity. Nevertheless, many disputes over mahr become serious only when the marriage breaks down. Article 1085 of the Civil Code also grants the wife a right of retention with respect to mahr that is immediately due: until she receives it, she may refuse to perform the duties specified in that article.³

The nature of mahr and the asynchrony of obligations

Imami jurists disagree about the nature of marriage and the relationship between mahr and *bud'*. One view treats mahr as consideration for *bud'*; another regards it as a gift or as the wife's financial right. On an intermediate reading, marriage is not a pure exchange contract, but it has certain commutative effects. In my view, this third reading is more consistent with the provisions of the Civil Code taken as a whole.⁴

Article 1082 recognizes the wife as the owner of the mahr from the conclusion of the contract, and Article 1085 grants her a right of retention with respect to mahr that is immediately due. Under Article 1086, if the wife voluntarily performs the duties referred to in Article 1085 before receiving the mahr, she loses her right of retention, although her right to

² Yossef Rapoport, *Marriage, Money and Divorce in Medieval Islamic Society*, Cambridge Studies in Islamic Civilization (Cambridge: Cambridge University Press, 2005).

³ *Civil Code of the Islamic Republic of Iran*, arts. 1082 (and the 1997 note appended to it), 1085, 1119, and 1130; see also arts. 1086, 1087, 1092, 362, and 377.

⁴ Mahdi Safari and Mojtaba Masoudi, "An Inquiry into the Nature and Status of the Marriage Contract, with Emphasis on Its Quasi-Commutative Character in Imami Jurisprudence" [in Persian], *Fiqh va Tarikh-e Tamaddon*, no. 79 (Spring 1403 SH/2024). See also Civil Code, arts. 1082, 1085, 1086, 1087, and 1092.

claim the mahr remains. At the same time, Article 1087 holds a permanent marriage valid even where no mahr has been stipulated, and Article 1092 halves the mahr upon divorce before consummation. Mahr is thus connected to the marital relationship, but it cannot be reduced to the price in a contract of sale. Nor is the wife's immediate ownership, in itself, evidence against a commutative logic: in a sale, too, ownership of both counter-values passes upon conclusion of the contract (Article 362).

The economic imbalance lies elsewhere. The mahr debt arises at the moment of the contract, but its collection may be deferred for years. Throughout this period, the wife is expected to perform her marital duties, and her domestic and care work is carried out every day. Moreover, once the condition in Article 1086 is met, the right of retention is lost. When I speak of mahr as "insurance" here, I mean its potential economic function, not its juristic nature or any pricing of women.

Consider a woman who, during the marriage, has stepped away from her job or career path and has borne a large share of domestic work and childcare. After divorce, she has no automatic share in the property acquired during the marriage. In this situation, mahr may compensate for part of her financial loss. Where housing, social protection, or a stable post-divorce income is unavailable to her, mahr therefore functions as a form of private insurance. But this insurance is not money that has been set aside and guaranteed; its value depends on the husband's ability to pay, the discovery of his assets, and the feasibility of pursuing a claim. Mahr does not, therefore, always create financial security. This account cannot justify the current disarray surrounding the imprisonment of mahr debtors, but it does show why we expect more of mahr than it can deliver. A right that should be one of a woman's assets has in practice taken the place of several other protections: a share in marital property, compensation for care work, support for life after divorce, and sometimes the means of securing the husband's consent to divorce.

The figure in the marriage contract is not a recoverable asset

The amount written into the marriage contract is not the sum a woman ultimately collects. One must ask what that amount is worth today, what portion of it can actually be recovered, and how much time and expense recovery requires.

Five hundred gold coins on paper, for example, may appear to be a substantial safeguard. But if the husband has no identifiable assets, if proceedings drag on for years, or if the wife relinquishes much of her claim in order to obtain a divorce, its real value is far lower. By contrast, a smaller mahr, part of which was paid at the time of marriage or which is secured by specific assets, may offer better protection. This example is not an estimate based on actual cases; it illustrates the difference between a financial promise and a recoverable asset.

The price of gold coins widens this gap. A mahr that seemed proportionate at the time of marriage may, after a surge in gold prices, far exceed the husband's income and assets. Using

annual data from 1980 to 2014, Farzanegan and Gholipour report a long-run relationship between the real price of gold coins and the divorce rate in Iran, and they treat financial strain as one possible explanation. Their study does not establish causation, nor does it cover the gold price surges after 2018. Gold coins can preserve the value of a woman's right against inflation, but they also bring the volatility of gold and currency markets into family life, and most couples' incomes do not keep pace with the price of gold. The nominal value of a mahr may therefore grow even as its collection becomes more difficult. Gold coins are not, however, the only way to preserve the value of mahr: under the 1997 note appended to Article 1082 of the Civil Code, a mahr stipulated in national currency is indexed to changes in the annual price index.⁵

Mahr and the possibility of exiting marriage

A person's power within marriage depends not only on current income but also on the options that would be available if the relationship ended: where the person would live, what income they would have, and whether they could obtain a divorce. In family economics, a person's alternative position is called the "outside option." The "threat point" is, in some models, the situation after divorce and, in others, non-cooperative behavior within the marriage itself.⁶

In Iran, men and women do not have equal authority to end a marriage. A wife may hold a delegated power of divorce or other stipulations in the marriage contract. Another route is to establish "hardship and distress" (*'usr va haraj*) under Article 1130 of the Civil Code, that is, to show that continuing the marriage would impose intolerable hardship on her. These routes, however, involve conditions and evidentiary burdens. The husband's power of divorce is more general; moreover, no law automatically grants the wife half of the property acquired during the marriage, and the property-sharing clause included in some marriage contracts is limited and conditional. This asymmetry can also be assessed against Article 23(4) of the International Covenant on Civil and Political Rights, to which Iran is a party. That provision requires states to take appropriate steps to ensure equality of rights and responsibilities of spouses as to marriage, during marriage, and at its dissolution.⁷

Under these conditions, a recoverable mahr can alter the wife's position: it may raise the cost to the husband of a unilateral divorce or of abandoning his obligations. At divorce, it sometimes becomes the asset with which a woman pays for a lawyer, housing, or a return to

⁵ Mohammad Reza Farzanegan and Hassan F. Gholipour, "[Does Gold Price Matter for Divorce Rate in Iran?](#)," *Journal of Family and Economic Issues* 39, no. 4 (2018): 588–599.

⁶ Marilyn Manser and Murray Brown, "[Marriage and Household Decision-Making: A Bargaining Analysis](#)," *International Economic Review* 21, no. 1 (1980): 31–44; Shelly Lundberg and Robert A. Pollak, "[Separate Spheres Bargaining and the Marriage Market](#)," *Journal of Political Economy* 101, no. 6 (1993): 988–1010. See also Marjorie B. McElroy and Mary Jean Horney, "[Nash-Bargained Household Decisions: Toward a Generalization of the Theory of Demand](#)," *International Economic Review* 22, no. 2 (1981): 333–349; Bina Agarwal, "['Bargaining' and Gender Relations: Within and Beyond the Household](#)," *Feminist Economics* 3, no. 1 (1997): 1–51.

⁷ United Nations, [International Covenant on Civil and Political Rights](#), art. 23(4).

work. At other times, a woman is compelled to relinquish this very right in order to obtain a divorce.

Article 6 of the recent bill illustrates this duality. It sought to add several situations to the note to Article 1130, including continuous separation for one year, the wife's intense aversion (*karahat*), and invoking the right of retention once a year has passed since the contract. Recognizing these situations could clarify the path to divorce, yet the approved text made reliance on them conditional on the wife's relinquishing all her financial rights. In addition, if the wife had already collected a right or received property or gifts from the husband, the court could, at the husband's request, make the divorce decree conditional on the return of all or part of it. The Guardian Council found the scope of this restitution ambiguous. In such circumstances, a financial safeguard may become the price of exit.⁸

Not all women benefit from mahr to the same degree. Exercising this right depends on legal awareness, access to the courts, the ability to locate the husband's assets, and the capacity to bear litigation costs; affluent families, for example, may make better use of these rules than low-income families. The size of this gap in Iran, however, cannot be determined without examining case files and individual-level data. Any assessment of the economic function of mahr depends on precisely these data: the amount stipulated in the contract and the amount actually collected, the duration of proceedings, the outcome of insolvency claims, the assets discovered, and the amount the wife relinquished to obtain a divorce.

The Egyptian experience shows why access to divorce matters. The *khul'* reform allowed women to obtain a divorce without proving fault on the husband's part. In return, the wife forfeits maintenance and the deferred dower and returns any dower she has received. Corradini and Buccione report a decline of about seven percentage points in intimate partner violence following the reform. School enrollment among children aged 15 to 24 also rose by about six percentage points, but the authors found no significant effect on women's labor force participation. The reduction in violence was estimated to be larger in wealthier households, although the difference across wealth groups was not statistically significant. The Egyptian experience therefore does not show that women should relinquish their financial rights to obtain a divorce; rather, it shows that real access to exit can affect a woman's position within marriage.⁹

What are the harms of the current form of mahr?

First, there is a gap between the promise and what backs it. No money or specific asset is usually set aside in advance for mahr. The parties can write a large figure into the contract at the time of marriage and defer its real cost to the future; when the time comes to claim it, the

⁸ [Text of the bill approved on 23 August 2026](#) [in Persian], art. 6; Guardian Council, above note 1.

⁹ Viola Corradini and Giulia Buccione, "[Unilateral Divorce Rights, Domestic Violence and Women's Agency: Evidence from the Egyptian Khul Reform](#)," *Journal of Development Economics* 160 (2023): 102947.

husband may be unable to pay. A large promise therefore does not necessarily bring real security.

Second, collecting mahr can be costly for both parties. The court must examine the debtor's financial capacity, installment arrangements, changes to installments, and the identification of assets. Under Article 3 of the Law on the Manner of Enforcement of Financial Judgments, detention is possible under certain conditions until the judgment is enforced, insolvency is established, or the creditor consents. "Insolvency" (*i'sar*) means the inability to pay a debt. If the debtor files an insolvency claim within thirty days, accompanied by a statement of assets, he is not detained until the claim is decided. The problem, then, is not only imprisonment but also the speed of proceedings and the accurate assessment of financial capacity: the law must distinguish a person who genuinely cannot pay from one who deliberately conceals his assets.¹⁰

Third, unpaid domestic and care work is not adequately compensated. Domestic work includes the day-to-day running of the household, such as cooking and cleaning; care work also encompasses looking after children, the elderly, or the sick. The note to Article 336 of the Civil Code provides for remuneration (*ujrat al-mithl*) for work that is not religiously the wife's duty and that customarily commands a wage, provided it was performed at the husband's instruction and without gratuitous intent. Proving these conditions, particularly the husband's instruction and the absence of gratuitous intent, can be contentious. Such remuneration is also not, in itself, a share in the property the family has accumulated over the years. Moreover, in my view, the amounts courts award as remuneration are, given inflation and the pace of price changes, very small and well below the true value of women's domestic work, although measuring this gap precisely would require a systematic study of court decisions. For these reasons, mahr still fills part of the gap left by the absence of property division and of compensation for domestic and care work.¹¹

This situation can be criticized without disregarding the current law. The law does not say that housework is the husband's duty; it says that such work is not religiously the wife's duty. The requirement that the work be performed "at the husband's instruction" also fits poorly with the gradual, unwritten division of labor in many families. Article 30 of the Family Protection Act, which concerns expenses a wife has paid from her own property for the ordinary costs of family life with the husband's permission or instruction, places the burden of proving gratuitous intent on the husband. This provision does not directly concern domestic work, but it shows that a presumption in the wife's favor is feasible. In my view, reform of the remuneration rules should likewise treat the continuous performance of such work as a presumption of entitlement and require the husband to prove that it was gratuitous.

¹⁰ [Law on the Manner of Enforcement of Financial Judgments of 2015 \(1394 SH\)](#), art. 3.

¹¹ Khadijeh Moradi and Atekeh Ghasemzadeh, "The Wife's Remuneration for Work (*Ujrat al-Mithl*) in Islamic Jurisprudence and Iranian Law in Light of the Family Protection Act of 2013" [in Persian], *Fiqh va Mabani-ye Hoquq-e Eslami* 48, no. 2 (1394 SH/2015): 301–317. See also Civil Code, art. 336, note; Family Protection Act of 2013, arts. 29 and 30.

Fourth, excessive reliance on mahr can delay other reforms and foster the impression that inequality in divorce rights, property, and employment is offset by a financial claim. In such a model, the man remains the principal provider, and the woman, in exchange for economic dependence, holds a promise of payment. The legal link among mahr, maintenance (*nafaqa*), and *tamkin* can also sustain this unequal relationship.¹²

Within this structure, mahr is both a safeguard and a trap. It is a safeguard because, in the absence of other protections, it may be one of the few assets a woman has. It is a trap because the very existence of this private claim can delay reform of divorce rights, property division, the valuation of domestic and care work, and the state's responsibility for post-divorce support. Instead of an equal right of exit, the woman holds a tool for negotiating her exit. Instead of a clear share of marital property, she holds a claim against her husband that may or may not be collected.

Where should reform begin?

The current form of mahr does need reform, because it secures women's financial position only uncertainly and is costly for both spouses and for the judiciary. The Majlis bill rightly identified certain real problems in the legal regime of marriage, such as locating a debtor's assets, adjusting installments amid severe price volatility, and countering asset transfers intended to evade debts. These provisions could be developed further and made clearer and more precise. But a fixed coin cap cannot substitute for an assessment of each debtor's financial capacity, and a new route to divorce for women should not depend on relinquishing all of their financial rights.

Turkish family law offers a useful point of comparison. Under the Turkish Civil Code, mahr is not an automatic effect of civil marriage; the courts have, however, examined certain written commitments to mahr, particularly deferred mahr, under the rules on promises of gift and general obligations law. The difference lies not only in the status of mahr. Under Articles 202, 218, and 219 of the Turkish Civil Code, participation in acquired property is the default matrimonial property regime. Article 166 allows either spouse to petition for divorce on the ground of a fundamental breakdown of the marital union, and Articles 174 and 175, subject to statutory conditions, provide for compensation and poverty maintenance (*yoksulluk nafakası*) after divorce. The decisive difference lies in this set of rights taken together: a woman's financial security does not rest on a single claim that is difficult to collect. This model cannot, however, be transplanted directly to Iran without regard to the secular structure of Turkish family law, the way judgments are enforced there, and its social protections.¹³

¹² Ziba Mir-Hosseini, "The Construction of Gender in Islamic Legal Thought and Strategies for Reform," *Hawwa* 1, no. 1 (2003): 1–28.

¹³ Barış Demirsatan, "Translating Mahr into Secular Categories: Turkish Civil Law and the Legal Characterization of an Islamic Institution," *Religions* 17, no. 10 (2026): 1112. See also Türk Medeni Kanunu [Turkish Civil Code], Law No. 4721, arts. 166, 174, 175, 202, 218, and 219, available on the [website of the Grand National Assembly of Türkiye](#).

In light of this model, and of the conditions and function of this financial right in Iranian family law, reform should proceed along several paths at once:

1. **Women should not be forced to relinquish all their financial rights to obtain a divorce.** Prolonged separation and intense aversion could clarify the route to divorce under Article 1130, but invoking the right of retention should not come at the cost of losing all of a woman's financial safeguards.
2. **Unpaid domestic and care work should be recognized in the division of marital property.** Formal ownership should not be treated as the sole indicator of contribution, since caring for children and the home is sometimes what enables one spouse to work outside the home and earn an income. A wife's contribution to housework and care work during the marriage should therefore carry a recoverable financial return.
3. **Post-divorce support should be accessible.** Covering child-related expenses, temporary housing, legal services, and support for victims of violence can ease the pressures of the transition period.
4. **Mahr should be backed by recoverable security.** Paying part of it at the time of marriage, transferring specific assets, stipulating a cash amount indexed to inflation (which the Civil Code already permits), or providing a traceable financial guarantee may be more useful than an unsecured promise of several hundred coins.
5. **Spouses should understand the consequences of the obligation before signing.** Disclosure of each party's financial circumstances, explanation of mahr and of the stipulations in the marriage contract, and access to independent counseling can reduce unrealistic commitments.
6. **Genuine inability to pay should be distinguished from deliberate refusal.** Article 11 of the International Covenant on Civil and Political Rights prohibits imprisonment merely on the ground of inability to fulfil a contractual obligation. Whether this provision applies precisely to mahr is open to debate, but a debtor who cannot pay should not be treated like one who conceals assets to avoid payment.¹⁴
7. **Rights women have acquired under existing law should not suddenly lose their value.** Some women have made decisions about work, childbearing, and care within the family in reliance on these very rules. If a new law weakens the collectability of prior rights, they cannot remake those past decisions. Any reform therefore requires clear transitional provisions that determine the status of mahr stipulated before the new law enters into force.

The sequence of these reforms matters. The right of exit, a share in marital assets, compensation for domestic and care work, and civil means of collection should be strengthened first; only then can the role of mahr be reduced and made more realistic. If

¹⁴ United Nations, [International Covenant on Civil and Political Rights](#), art. 11.

enforcement is weakened first, an imperfect form of insurance is lost without a better one taking its place.

The ultimate goal should be neither to preserve mahr amounts of several hundred coins nor to return to widespread detention. It should be to transform women's security from a volatile, hard-to-collect claim into a set of clear and enforceable rights. During a transitional period, mahr can remain part of this set, but it should not take the place of an equal right of exit, a share of marital property, economic independence, and public support.